

CHAPTER 19.

An Act for the acquisition of Property for building a new Land Registry Office and other Public Offices in London, and for purposes connected therewith.

[30th July 1900.]

WHEREAS it is expedient to provide a new building for the business of the Land Registry Office and other public departments carried on at the Land Registry Office situate in Lincoln's Inn Fields, and for such other public offices as may be determined :

And whereas for that purpose it is expedient that the Commissioners of Works (in this Act called the Commissioners) should be empowered to acquire certain land and buildings situated in the parishes of Saint Clement Danes and Saint Giles-in-the-Fields, in the county of London :

And whereas these lands and buildings cannot be acquired without the authority of Parliament :

And whereas duplicate plans (in this Act referred to as the deposited plans) describing the situation of the land proposed to be acquired, with the houses and buildings thereon, with a book of reference thereto (in this Act referred to as the deposited book of reference), containing the names of the owners and lessees, or reputed owners and lessees, and of the occupiers thereof, have been deposited with the clerk of the peace for the county of London :

Be it therefore enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1. The Commissioners may purchase and acquire for the purposes of this Act all or any of the lands delineated on the deposited plans and described in the deposited book of reference. Power to purchase land.

2.—(1.) For the purpose of the purchase and acquisition of land under this Act the Lands Clauses Acts shall, subject to the provisions of this Act, be incorporated with this Act with the following exceptions and modifications :— Incorporation of Lands Clauses Acts.

- (a.) The provisions relating to the sale of superfluous land and access to the special Act and section one hundred and thirty-three of the Lands Clauses Consolidation Act, 1845 (relating to land tax and poor rate) shall not be incorporated with this Act : 8 & 9 Vict. c. 18.
- (b.) In the construction of this Act, and of the incorporated Acts, this Act shall be deemed to be the "special Act," and the Commissioners shall be deemed to be the "promoters of the undertaking" :
- (c.) The bond required by section eighty-five of the Lands Clauses Consolidation Act, 1845, shall be under the common seal of the Commissioners, and shall be sufficient without the addition of the sureties mentioned in that section :

(d.) All claims for compensation made upon the Commissioners under this Act, or any Act incorporated herewith, shall, if the person claiming has no greater interest in the land in respect of which compensation is claimed, than as tenant from year to year, or as a leaseholder for any term of which not more than eighteen months remain unexpired at the time at which the claim is made, be determined in manner provided by section one hundred and twenty-one of the Lands Clauses Consolidation Act, 1845.

(2.) The powers of the Commissioners for the compulsory purchase of land under this Act shall cease after the expiration of three years from the passing of this Act.

Issue and
raising of
money for
purposes of
Act.

3.—(1.) The Treasury may issue out of the Consolidated Fund or the growing produce thereof such sums, not exceeding in the whole the sum of two hundred and sixty-five thousand pounds, as may be required by the Commissioners for such purposes connected with the acquisition of land and the erection of buildings under this Act as the Treasury may approve.

(2.) The Treasury may, if they think fit, at any time for the purpose of providing money for the issue of sums out of the Consolidated Fund under this Act, or the repayment to that Fund of all or any part of the sums so issued, borrow money by means of terminable annuities for such period, not exceeding fifty years from the passing of this Act, as the Treasury may fix, and all sums so borrowed shall be paid into the Exchequer.

(3.) The said annuities shall be paid out of moneys provided by Parliament for the service of the Commissioners, and if those moneys are insufficient, shall be charged on and paid out of the Consolidated Fund of the United Kingdom, or the growing produce thereof.

(4.) The Commissioners shall, within six months after the end of every financial year in which money is issued under this section, cause to be made out an account, in the form required by the Treasury, showing the money expended and borrowed and the securities created under this Act; and the account of expenditure under this Act shall be audited and reported upon by the Comptroller and Auditor-General as an appropriation account in manner directed by the Exchequer and Audit Department Act, 1866.

Land tax.

4.—(1.) Any land tax assessed on the first day of January one thousand nine hundred on any part of the land acquired by the Commissioners of Works for the purposes of this Act shall, as from the date of acquisition, be deemed to have been redeemed at the price and in accordance with the conditions provided by the Finance Act, 1896, and the Land Tax Acts therein defined, and after the date of acquisition no sum shall be assessed or charged in respect of land tax on any part of the land so acquired.

59 & 60 Vict.
c. 28.

(2.) The Commissioners of Inland Revenue shall grant a certificate of exoneration from assessment to land tax of the lands so acquired, and that certificate shall be registered by the officer

appointed for the registry of contracts for the redemption of land tax.

5.—(1.) All rights of way, rights of laying down or of continuing any pipes, sewers, or drains, on, through, or under any of the land acquired by the Commissioners under the provisions of this Act, and all other rights and easements in or relating to that land, shall be extinguished, and all the soil of those ways, and the property in the pipes, sewers, and drains, shall vest in the Commissioners.

Extinction of rights of way and other easements.

(2.) Provided that any persons may recover from the Commissioners such compensation (if any) as they may be entitled to under any of the provisions of the Lands Clauses Acts for any rights or property of which they may be deprived in pursuance of this section and the amount of that compensation shall be determined in manner provided by the Lands Clauses Acts as modified for the purpose of their incorporation with this Act.

6. Nothing in this Act shall affect any rights or jurisdiction of the London County Council in relation to any sewers, drains, or watercourses.

Saving for County Council.

7. The Commissioners and their surveyors, officers, and workmen may at all reasonable time in the daytime, on giving twenty-four hours' notice in writing, enter on any of the land which the Commissioners are authorised to acquire under this Act for the purpose of surveying or valuing the land.

Power to enter on lands.

8. The Commissioners may erect all such buildings, execute all such works, and do all such other things as may in their opinion be necessary or proper for the purpose of providing, on land acquired by them under this Act, and on the site of the present Land Registry Office, accommodation for the business of the Land Registry Office and other public departments carried on at the Land Registry Office, and for such other public offices as may be determined, and appropriating any such land for any of those purposes.

Power of Commissioners to build.

9.—(1.) Where, in the removal or pulling down of any buildings, or in raising or lowering the ground of any street or way for the purpose of this Act, it is necessary to raise, sink, or otherwise alter the position relatively to the surface of the ground of any pipe, wire, or other apparatus, laid down or used by any gas, water, or electricity company, or connected with any house or building for the supply of gas, water, or electricity,

Protection of works of gas, water, and electricity companies.

- (a) one month's notice shall be given to the company previously to the commencement of any such work; and
- (b) the work shall be executed to the reasonable satisfaction of the engineer of the company, or in case of difference of an engineer to be selected by the Board of Trade; and
- (c) every such work shall be so executed as to cause as little inconvenience as circumstances will admit to the company; and

(d) the Commissioners shall make compensation to the company for all loss or damage, if any, which may be occasioned by the execution of any of the works authorised by this Act.

(2.) For the purposes of this section the expression "gas, water, or electricity company" includes any person or body of persons supplying gas, water, or electricity.

Application of
15 & 16 Vict.
c. 28.

10. The provisions of the Commissioners of Works Act, 1852, and any Act amending that Act, shall apply in the case of the acquisition of land by the Commissioners under this Act in like manner as in the case of a purchase under that Act, and any notice, summons, writ, or other document required to be given, issued, or signed, by or on behalf of the Commissioners, may be given, issued, or signed by the secretary or assistant secretary of the Commissioners and need not be under their common seal.

Penalty for
obstructing
Commis-
sioners.

11. If any person wilfully obstructs any person acting under the authority of the Commissioners in the lawful exercise of the powers vested in them under this Act, he shall for each offence be liable, on summary conviction, to a fine not exceeding five pounds.

Short title.

12. This Act may be cited as the Land Registry (New Buildings) Act, 1900.

CHAPTER 20.

An Act to amend the Law regarding Ecclesiastical Assessments in Scotland. [30th July 1900.]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

When assess-
ment to be on
valued rent.

1. Where in any parish it shall be necessary to impose an ecclesiastical assessment which, according to previous use and wont in the parish, would fall to be imposed according to the valued rent, but which it would be competent to impose according to the real rent, it shall be lawful for any valued rent heritor to request the clerk to the heritors to summon a meeting of valued rent heritors in the manner prescribed by section twenty-two of the Ecclesiastical Buildings and Glebes (Scotland) Act; and if at such meeting it is resolved by a majority of not less than two-thirds in value of valued rent heritors, voting personally or by proxy, that the amount shall be imposed according to the valued rent, then such assessment shall be imposed according to the valued rent, any law to the contrary notwithstanding.

31 & 32 Vict.
c. 96.

Inspection,
&c. of scheme
of assessment
on real rent.

2. When it has been resolved to levy an assessment in any parish according to the real rent, intimation of such resolution shall be made to the presbytery of the bounds and to the